



Planning Statement Land at Sladbury's Lane

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1.0 Introduction



Land at Sladbury's Lane

1.0 Introduction

This planning statement has been prepared by Stanfords on behalf of the applicant, Mr D Akers, and the wider consultant team, to accompany the outline application for the residential development at the land off Sladburys Lane, Holland-on-Sea (the Site). The proposal comprises up to 30 homes with associated infrastructure including new open space provision and new access.

This statement has been prepared in accordance with Article 9 of the Town and Country Planning (Development Management Procedure) (England) Order 2015 (DMPO), which requires certain applications to be accompanied by a Design and Access Statement. The DMPO also states the following requirements:

(2) An application for planning permission to which this paragraph applies must, except where paragraph (4) applies, be accompanied by a statement (“a design and access statement”) about:

- (a) the design principles and concepts that have been applied to the development; and*
- (b) how issues relating to access to the development have been dealt with.*

(3) A design and access statement must:

- (a) explain the design principles and concepts that have been applied to the development;*
- (b) demonstrate the steps taken to appraise the context of the development and how the design of the development takes that context into account;*
- (c) explain the policy adopted as to access, and how policies relating to access in relevant local development documents have been taken into account;*
- (d) state what, if any, consultation has been undertaken on issues relating to access to the development and what account has been taken of the outcome of any such consultation;*
- (e) explain how specific issues which might affect access to the development have been addressed.*

The purpose of this statement is: *...to explain how the proposed development is a suitable response to the site and its setting, and demonstrate that it can be adequately accessed by prospective users.* (Para. 029, PPG, Reference ID: 14-029-20140306).

This statement should be read in conjunction with the Outline Planning Application and its accompanying supporting documents.

2.0 The Site



Land at Sladbury's Lane

2.1 The Site's Location



The Site is located on the edge of Holland-on-Sea, part of the Clacton-on-Sea settlement, adjacent to the settlement boundary and contained by development on two sides and marked distinctly by mature trees and hedgerows on the other two.

As expected with a settlement designated as a Strategic Urban Settlement, there are a wide range of services and facilities, many of which are easily accessible from the site. The train station is a 35 minute walk, 10 minute cycle ride or 20 minute bus ride from the site's entrance.

Within a 1km in distance from the site, accessible by paved footpaths;

- Holland Park Primary School
- Yellow Brick Road Nursey
- Little Holland Nursery
- Shorefields School
- Tesco Express
- Roaring Donkey
- The Oakwood Inn
- Fish & Chips Holland-on-Sea
- Fish & Chips Clacton-on-Sea
- Pete's Fish & Grill
- Holland Football Club
- New Play Areas at Persona Homes development
- Eastcliff Play Area
- The Range
- The Epping Close Surgery
- Famrfoods

The images on this and the next page demonstrate the Site's location (marked out in red) in the context of the adjacent built up areas and the open countryside. Notably from these views is how the Site is more easily readable as part of the built form of Holland-on-Sea rather than the adjacent expansive agricultural fields; the Site is well contained by the built form and existing vegetation. These images also demonstrate how the Site's proposed built form would not go beyond the established built form lines.





2.2 The Site's Use and History

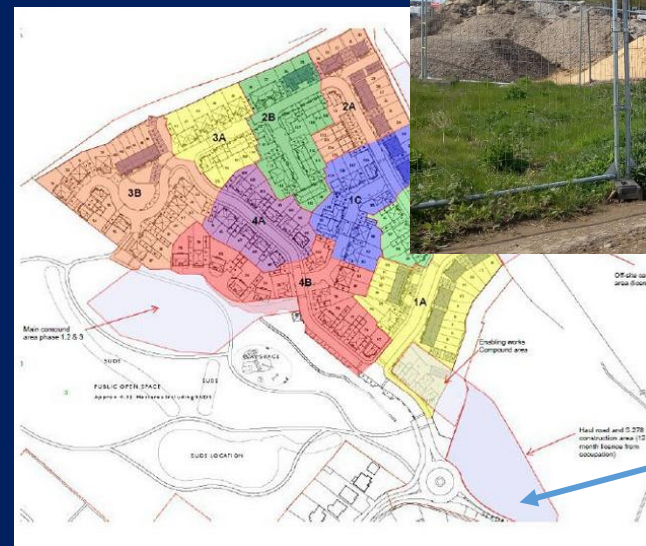


The Site is an agricultural field that has been actively farmed for decades, however the small size of the field makes it inefficient with modern farming technology and techniques.

There was a historic access onto the Site from Sladbury's Lane situated on the bend which is now occupied by the new roundabout that accompanied the Persona Homes development. Two new accesses have since been created to serve the compound area for the Persona Homes development.

The southern quarter of the Site received permission to be used as compound area for the Persona Homes Development via the Construction Method Statement condition that was discharged in 2022.

There is no other planning history for the Site.



Above, view of the compound from new access

The Approved compound location on the Site

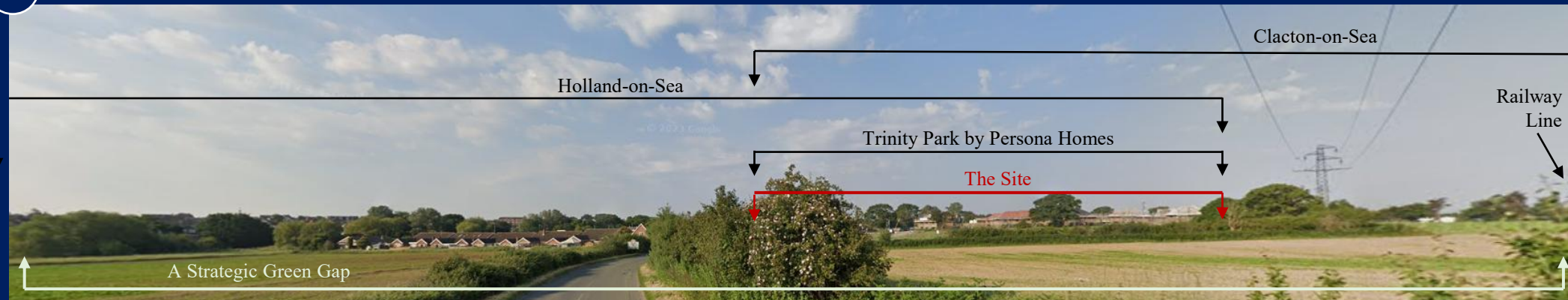
Extract taken from the Approved Construction Method Statement for the Persona Homes Development

2.3 The Site's Spatial Context



Image above: Google Earth extract showing the Site outlined in red and 6 key areas considered as part of the Site spatial assessment with photos on next pages

1

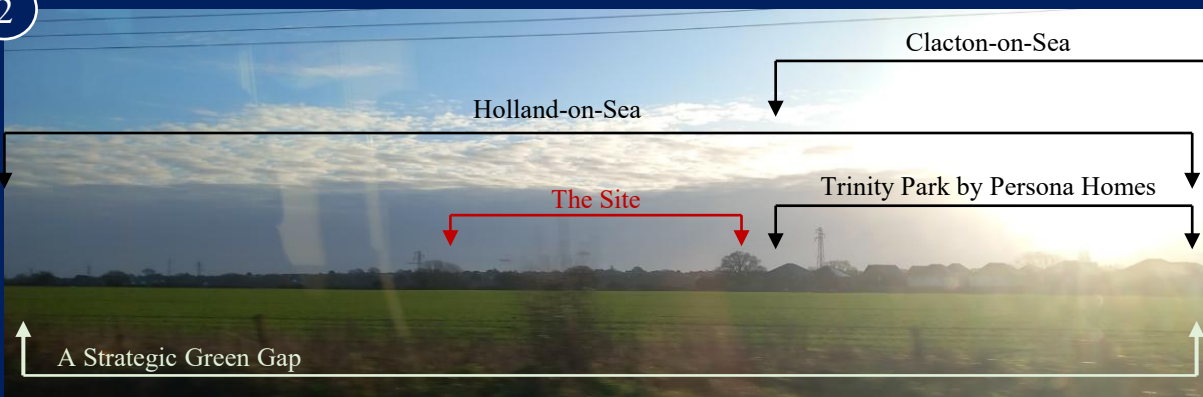


The above image has been captured facing south-westwards towards the entrance to Holland-on-Sea, the road signage announcing the arrival of the settlement is just visible, in the distance, to the left of the road. In the foreground of the image, to the left and the right, is the Strategic Green Gap, as designated on the Policy Map. The bungalows of Keswick Avenue are clearly visible across the open fields and the new two-storey dwellings of the Persona Homes development are also visible, albeit further away. Just before the Persona Homes development, but behind the agricultural field clearly visible on the right, is the Site. Far off to the right, not visible, would be the main rail line that serves Clacton-on-Sea. Beyond what is visible in this image is Holland-on-Sea and Clacton-on-Sea.



The image to the left is further along Sladbury's Lane, past the highway signage that marks the entrance into Holland-on-Sea. The existing entrance is just visible on the right. The Site can be seen in front of the Persona Homes development, of note is how the dead tree marks the border of the Site.

2



The image to the left has been captured on the train that departed Clacton-on-Sea and provides the view of the Site, the new development by Persona Homes with the Strategic Green Gap in the foreground and Holland-on-Sea and Clacton-on-Sea in the distance.



The above image has been captured facing south-westwards from the entrance of the existing access of the site, this access is currently being used to serve the compound of the Persona Homes development. The Persona Homes development is clearly visible across the Site. The Site's north-western boundary is evidently well established with mature trees and hedgerows. To the south-east of the site are more mature trees. The Site is adjacent to the settlement boundary and is clearly in a built up area served with paved footpaths, street lights, road signage and telegraph poles.



To the left is an image clearly showing the existing access that is used to provide access to the compound of the Persona Homes development, including parking for cars, construction vehicles and materials to be stored. Typically this compound can be used by around 50-60 cars a day.



To the left and above are photos of the typical homes facing the site along Sladbury's Lane



The above image has been captured facing north towards the Site. The Site is clearly visible from the new roundabout (secured by and developed to support the Persona Homes development). The Persona Homes development is visible to the left at 2-storeys. To the right are the bungalows and 1.5- storey houses. Also clearly visible in this photo is the TPOs to the left, that have been protected and their setting enhanced as part of the Persona Homes development. To the right, mature trees that are adjacent to the Site's entrance are also clearly visible. These trees, left and right, offer an enclosure of the Site and also reflect how the houses are larger to the left and step down in height to the right..



The above image has been captured facing south-westwards towards the new roundabout with Persona Homes development to the right and the road leading further into Holland-on-Sea or towards Clacton-on-Sea to the left. In the foreground, to the right, is the compound for Persona Homes, this compound is on the Site.



The image to the right is the entrance to the Persona Homes development that is directly adjacent to the Site. This development is also known by its sales name of Trinity Park. Persona Homes describes their site as a development that offers rural views and peaceful public open spaces whilst being served by a wide range of facilities and services and within a reasonable distance of the train line into London.

The image at the bottom left is a CGI sourced from the Persona Homes website that shows their landscaped development with family homes.

Below is their site's masterplan which demonstrates the amount of new public open space being provided by this development which will be easily accessible to any future occupiers of the proposed Site.



Sourced from the Persona Homes website





The image above has been taken on Sladbury's Lane looking north towards the Site, across the roundabout. The roundabout is visible in front of the Site and the Persona Homes development is just visible in the background on the left. In the foreground are the typical homes found along this stretch of Sladbury's Lane which are also typical for Holland-on-Sea.

The images below are of the homes that line this section of Sladbury's Lane and are part of the Site's context, as is the Persona Homes development. The long front gardens and off-street parking are typical for much of Holland-on-Sea.



2.4 Flood Risk and Drainage

Although the site is located within Flood Zone 1 (at the lowest risk of flooding) it does exceed 1ha and for this reason development proposals must be accompanied by a Flood Risk Assessment

Flooding from Surface Water

The Surface Water Management Plan (SWMP) Study Area represents the extent of the Local Lead Flood Authority's hydraulic modelling and detailed modelling data can be made available within this area. The Risk of Flooding from Surface Water (RoFfSW) mapping should continue to be referenced for an indication of surface water flood risk outside of the SWMP Study Area boundary. As you can see there is a very low risk of flooding from Surface Water at the front of the site and whilst there is one area of high risk, its located close to the rear boundary.

Sustainable Urban Drainage Scheme (SUDS)

The use of SuDS is a requirement on developments to serve several functions. These include controlling runoff water rates and volumes to lower downstream flood risk. If incorporated from inception, SuDS schemes can offer a very economical drainage solution with added value and ecological benefits.

Engineering Consultants can provide a Flood Risk Assessment and Strategy to accompany the proposals which will detail the best solution for managing water on site, whether that is an attenuation basin, SuDS and/or wetland. Any scheme would need a layout architect and flood risk engineer to work closely together to ensure that the scheme is successfully designed to withstand the robust climate change tests by the Local Lead Flood Authority as part of the planning process.



2.5 Ecology and Vegetation

Trees

There are two protected Oak trees on the southwest boundary 15/00014/TPO – for this reason the application must be accompanied by an Arboricultural Impact Assessment; we have already booked James Choat to carry out the AIA. The extent of the root protection areas of all key trees (not just those which are statutorily protected) would determine the location of built form.

Local Planning Authorities, the Planning Committee and the general public look more favourable on schemes that can retain, protect and enhance the existing trees and vegetation on a site. This can be done by designing a layout around the existing trees and vegetation which can often provide great opportunities for public amenity areas, good vistas, strong way points due to the mature planting.

Ecology

A preliminary ecological assessments has been submitted as part of this application, which concludes that there are no identified ecology issues that require any further attention as part of this planning application.

Biodiversity Net Gain

Legislation in 2024 requires all development, apart from those that are exempt, to deliver an uplift of 10% biodiversity net gain (BNG) on the site. The land at Sladbury's Lane would need to be capable of delivering 10% BNG alongside any residential development either onsite or offsite.

The legislation states that a development cannot be refused permission on the grounds that it does not provide 10% BNG onsite as there is always the option for a development to be reliant on offsite credits to reach that 10%.

A BNG baseline assessment has been submitted as part of the application and to help inform BNG considerations if this site was to then progress onto the Reserved Matters stage.

2.6 Adjacent Site's Planning History – Persona Homes Development

There is no planning history for the site itself but the table below summarises the planning history for the new development to the west/southwest.

Reference	Description	Decision	Date
15/01351/OUT	Outline planning application for residential development up to 132 dwellings and open space, including provision for a sports field and a new vehicular access via Sladbury's Lane.	Allowed on appeal	October 2017
20/01416/DETAIL	Reserved matters application for residential development up to 132 dwellings with associated open space, landscaping, drainage, parking, servicing and utility infrastructure, with new vehicular access via Sladbury's Lane.	Approved	October 2021
22/01343/VOC	Variation of condition 1 of application 20/01416/DETAIL to update the approved drawings: house types HT A and HT P changes from two bedrooms to one bedroom, house type HT C changes from three bedrooms to two bedrooms, tenures of plots 9 and 15 swapped.	Approved	July 2023

Summary of 15/01351/OUT and Subsequent Appeal

Despite the planners recommending that the application be approved; the outcome of the Committee Meeting held on 9th August 2016 was that:-

Following discussion by the Committee, and consideration of further advice provided by Officers at the meeting with regards to defending potential reasons for refusal, it was moved by Councillor Gray, seconded by Councillor Hones and RESOLVED that, contrary to the Officer's recommendation of approval, the Head of Planning (or equivalent) authorised officer) be authorised to refuse planning permission for the development for the following reasons:

- Loss of local Green Gap
- Impact on local character.

The formal decision notice sets out when developing on land within a Local Green Gap (LGG) was considered acceptable under the previous 2007 Local Plan; an example of this is given by the Council as "These may include the improvement of existing leisure and recreational facilities, and development for agricultural purposes." The council cite the following two purposes of the LGG in this particular area:- (i) Safeguard the unspoilt countryside gap between the railway line and Picker's Ditch to maintain clear separation and distinction between the identity and character of Holland-on-Sea and the Burrsville area of Great Clacton; and (ii) Preserve views from both areas, and for train passengers, over this attractive wedge of rolling landscape.

The Council explain in detail that the size (approximately 8.6 ha) and location (at the LGG's narrowest Point); overall resulting in a significant change to the identity, character and openness of the setting of Holland - on - Sea by narrowing, considerably, the undeveloped gap of unspoilt countryside between the railway line and Picker's Ditch by urbanising an area that is currently semi-rural in its nature.

Following the refusal of the Outline application on 11th August 2016, an appeal was lodged with the Planning Inspectorate in April 2017 and on 11th October 2017 the outline planning application for residential development up to 132 dwellings and open space, including provision for a sports field, new vehicular access via Sladbury's Lane at land north west of Sladbury's Lane appeal was allowed with 23 conditions attached.

Summary of 20/01416/DETAIL and 21/00042/DISCON

In October 2020 a reserved matters (RM) application was submitted; the application sought approval for all of the matters reserved at outline stage. The principle of development was established by the granting of outline planning permission for up to 132 dwellings at appeal.

Officer conclusions for the development proposed by reserved matters application 20/01416 were that:-

- As established through the granting of outline application 15/01351/OUT, at appeal, the principle of residential development for up to 132 dwellings on this site is acceptable. The appeal decision also deals with matters of impact on protected species, biodiversity and flood risk.
- The detailed design, layout, access, landscaping and scale are considered acceptable.
- The proposal would result in no material harm to residential amenity or highway safety.
- The flood risk details submitted in the form of a SuDS Design and Management Report are sufficient to discharge condition No. 10 (Surface Water) of Planning Application 15/01351/OUT approved on appeal APP/P1560/W/17/3169220.

The application was approved by the Planning Committee with 11 conditions attached.

Summary of 22/01343/VOC

In August 2022 a Variation of Condition application was submitted seeking to make amendments to the list of approved drawings. The Council concluded that "the revisions do not result in a significant change to the character or appearance of the development".

In conclusion; the submission and approval of the Variation of Conditions (Section 73) application amounts to a whole new permission – which thereby replaces all previous permissions. Unless specifically listed as a condition on the decision notice, all previous-imposed conditions have in effect fallen away.

3.0 Planning Policy



Land at Sladbury's Lane

3.1 T e n d r i n g D i s t r i c t L o c a l P l a n S e c t i o n 1

The local development planning framework consists of Tendring District Local Plan Sections 1 and 2, including a Policy Map. Section 1 includes the strategic policies. All of the strategic policies are relevant to the site but there are a particular two that hold importance in the place making of the scheme.

SP1 – Presumption in Favour of Sustainable Development

Policy SP1 requires that, when considering development proposals the Local Planning Authorities will take a positive approach that reflects the presumption in favour of sustainable development contained in the National Planning Policy Framework. They will always work pro-actively with applicants to find solutions which mean that proposals can be approved wherever possible, and to secure development that improves the economic, social and environmental conditions in the area. The presumption in favour of sustainable development does not change the statutory status of the development plan as the starting point for decision-making. Where a planning application conflicts with an up-to-date development plan (including any neighbourhood plans that form part of the development plan), permission should not usually be granted.

SP2 – Recreational Disturbance Avoidance and Mitigation Strategy (RAMS)

The Essex Coast Recreational disturbance Avoidance & Mitigation Strategy (RAMS) is an initiative to raise awareness of the birds that feed and breed on the Essex coast, so that people can enjoy the coast and its wildlife without disturbing the birds. the Essex LPAs are collecting contributions to spend on necessary mitigation measures. New homes built within the Zone of Influence are likely to lead to more people visiting the Designated Habitats Sites with a potential to have an impact on the birds. All new homes within the Zone of Influence can pay a tariff per dwelling to contribute to the Essex Coast RAMS and mitigate likely significant effects from recreational disturbance. As the development proposal relates to new housing you will be expected to enter in to a legal agreement confirming that RAMS contributions would be payable for each new dwelling (£163.86 per dwelling, index-linked).

SP3 – Spatial Strategy for North Essex

Existing settlements will be the principal focus for additional growth across the North Essex Authorities area within the Local Plan period. Development will be accommodated within or adjoining settlements according to their scale, sustainability and existing role both within each individual district and, where relevant, across the wider strategic area. The site is outside but adjoins the Strategic Urban Settlement of Clacton to the southeast and southwest boundaries.

SP4 – Meeting Housing Needs

Provision of sufficient housing is critical to meet the needs of a growing population and for the effective functioning of local economies. To meet the requirements of national policy to establish the number and type of new homes, an Objectively Assessed Housing Need Study was published July 2015 and updated in November 2016. Based on 2014 national projections covering the period 2013 to 2037, the conclusion reached is that the objectively assessed need across the Housing Market Area is 2,999 new homes a year over the period 2013 – 2037. This figure includes a figure of 550 new homes per year for Tendring. Calculation of housing need in the District is complicated by uncertainty arising from unattributed population change (UPC). The North Essex Authorities identifies and updates annually a supply of specific deliverable sites sufficient to provide five years' worth of housing against their individual housing requirements set out in Policy SP4. Each authority must incorporate an additional buffer as required by national planning policy to ensure choice and competition for land.

SP6 – Infrastructure & Connectivity

A coordinated and integrated approach to infrastructure planning and delivery is required to implement the vision for North Essex. Provision of appropriate and timely infrastructure to support growth will be central to the area's continuing prosperity, attractiveness and sustainability. All development must be supported by the provision of the infrastructure, services and facilities that are identified to serve the needs arising from the development. Sections B (Transportation and Travel), C (Social Infrastructure), D (Digital Connectivity) and E (Water & Waste water) apply to all allocations and development proposals in the North Essex Authorities area.

The application will be expected to increase opportunities for sustainable modes of transport that can compete effectively with private vehicles and the introduction of segregated walking and cycling routes linking key centres of activity. There is an opportunity for the development to maximise its positive contribution in creating healthy communities and minimise its negative health impacts, both in avoidance and mitigation, as far as is practicable. The conditions for a healthy community will be provided through the pattern of development, good urban design, access to local services and facilities; green open space and safe places for active play and food growing, and which are all accessible by walking, cycling and public transport.

3.1 Tending District Local Plan Section 1

SP7 – Place Shaping Principles

The North Essex area has a great variety of natural environments, and wonderful towns and villages. It is critical that new development must incorporate high standards of place-making along with urban and architectural design to respect the character of these environments.

Networks of green and blue infrastructure should be provided across new developments, linking new developments within existing networks of open space. These areas can be multi use, providing space for natural species and habitats as well as space for informal recreation, walking, and cycling. Enhancements to the public realm, landscaping measures and attention to architectural detail will be important features that the authorities will wish to see included in new developments.

Sustainable Drainage Systems (SuDS) provide abundant opportunities to introduce wildflower strips and soft landscaping to a development or urban area. This not only brings an attractive feature to the area for people but acts as a wildlife corridor, connecting the rivers, ditches, hedges, verges and gardens, allowing movement of wildlife throughout an area, connecting to the wider environment and therefore greatly enhancing the biodiversity value of the site.

Policy SP 7

Place Shaping Principles

All new development must meet high standards of urban and architectural design. Development frameworks, masterplans, design codes, and other design guidance documents will be prepared in consultation with stakeholders where they are needed to support this objective.

All new development should reflect the following place shaping principles, where applicable:

- Respond positively to local character and context to preserve and enhance the quality of existing places and their environs;
- Provide buildings that exhibit individual architectural quality within well-considered public and private realms;
- Protect and enhance assets of historical or natural value;
- Incorporate biodiversity creation and enhancement measures;
- Create well-connected places that prioritise the needs of pedestrians, cyclists and public transport services above use of the private car;
- Provide a mix of land uses, services and densities with well-defined public and private spaces to create sustainable well-designed neighbourhoods;
- Enhance the public realm through additional landscaping, street furniture and other distinctive features that help to create a sense of place;
- Provide streets and spaces that are overlooked and active and promote inclusive access;
- Include parking facilities that are well integrated as part of the overall design and are adaptable if levels of private car ownership fall;
- Provide an integrated and connected network of biodiverse public open space and green and blue infrastructure, thereby helping to alleviate recreational pressure on designated sites;
- Include measures to promote environmental sustainability including addressing energy and water efficiency, and provision of appropriate water and wastewater and flood mitigation measures including the use of open space to provide flora and fauna rich sustainable drainage solutions; and
- Protect the amenity of existing and future residents and users with regard to noise, vibration, smell, loss of light, overbearing and overlooking.

3.2 Tending District Local Plan Section 2

Section 2 of the Local Plan has an array of relevant policies that have helped inform the design of the scheme. The key policies regarding design are shared below.

Policy SPL 3

SUSTAINABLE DESIGN

Part A: Design. All new development (including changes of use) should make a positive contribution to the quality of the local environment and protect or enhance local character. The following criteria must be met:

- a. new buildings, alterations and structures are well designed and maintain or enhance local character and distinctiveness;
- b. the development relates well to its site and surroundings particularly in relation to its siting, height, scale, massing, form, design and materials;
- c. the development respects or enhances local landscape character, views, skylines, landmarks, existing street patterns, open spaces and other locally important features;
- d. the design and layout of the development maintains or enhances important existing site features of landscape, ecological, heritage or amenity value; and
- e. boundary treatments and hard and soft landscaping are designed as an integral part of the development reflecting the function and character of the development and its surroundings. The Council will encourage the use of locally distinctive materials and/or locally occurring and characteristic hedge species.

Part B: Practical Requirements. New development (including changes of use) must meet practical requirements. The following criteria must be met:

- a. access to the site is practicable and the highway network will, following any required mitigation, be able to safely accommodate the additional traffic the proposal will generate and not lead to severe traffic impact;
- b. the design and layout of the development maintains and/or provides safe and convenient access for people with mobility impairments;
- c. the development incorporates or provides measures to minimise opportunities for crime and anti-social behaviour;
- d. the applicant/developer can demonstrate how the proposal will minimise the production of greenhouse gases and impact on climate change as per the Building Regulations prevailing at the time and policies and requirements in this plan;
- e. buildings and structures are designed and orientated to ensure adequate daylight, outlook and privacy for future and existing residents;
- f. provision is made for adequate private amenity space, waste storage and recycling facilities, vehicle and cycle parking; and
- g. the development reduces flood risk and integrates sustainable drainage within the development, creating amenity and enhancing biodiversity.

Part C: Impacts and Compatibility. New development (including changes of use) should be compatible with surrounding uses and minimise any adverse environmental impacts. The following criteria must be met:

- a. the development will not have a materially damaging impact on the privacy, daylight or other amenities of occupiers of nearby properties;
- b. the development, including any additional road traffic arising, will not have unacceptable levels of pollution on: air, land, water (including ground water), amenity, health or safety through noise, smell, dust, light, heat, vibration, fumes or other forms of pollution or nuisance;
- c. the health, safety or amenity of any occupants or users of the proposed development will not be materially harmed by any pollution from an existing or committed use; and
- d. all new development should have regard to the most up to date adopted Essex Mineral Local Plan; and
- e. during the construction phase, developers must comply with a 'considerate constructors' scheme' which employs reasonable measures and techniques to minimise and mitigate impacts and disturbance to neighbours and the existing wider community and any damage to public and private property.

All new development (including changes of use), should incorporate climate change adaptation measures and technology from the outset including reduction of emissions, renewable and low carbon energy production, passive design, and through green infrastructure techniques, where appropriate.

When considering new development, applicants and developers should avoid adverse impacts upon the environment. Where this is not possible, mitigation measures should be put forward. As a last resort, compensate for adverse environmental impacts.

Any measures necessary to meet the above requirements are to be established by the applicant/developer.

This Policy contributes towards achieving Objectives 6, 7 and 8 of this Local Plan.

Policy HP 3

GREEN INFRASTRUCTURE

Green Infrastructure will be used as a way of adapting to, and mitigating the effects of, climate change, through the management and enhancement of existing spaces and habitats and the creation of new spaces and habitats, helping to provide shade during higher temperatures, flood mitigation and benefits to biodiversity, along with increased access.

All new development must be designed to include and protect and enhance existing Green Infrastructure in the local area, as appropriate.

Green Infrastructure as identified on the Policy Map, will be protected, managed and where necessary enhanced by:

- a. managing development to secure a net gain in green infrastructure;
- b. supporting investment priority projects set out in the Green Infrastructure Delivery Plan;
- c. not permitting development that compromises the integrity of the overall Green Infrastructure networks;
- d. investing in enhancement and restoration where opportunities exist; and
- e. using developer contributions to facilitate improvements to their quality and accessibility.

The Council will work with all sectors and interest groups to help deliver Green Infrastructure projects. Developers should use the guiding principles set out in the Green Infrastructure Delivery Plan to influence all development proposals from an early stage in the design process. Any new Green Infrastructure proposed must be accompanied by a plan for the long-term sustainable maintenance and management of these assets, as well as phasing plans to demonstrate how they are to be delivered. New Green Infrastructure should incorporate semi-natural habitats and provide net gains in biodiversity wherever possible. The long-term management of assets should include biodiversity recording/monitoring to verify/ensure the ecological integrity of GI networks. Green Infrastructure should, where appropriate, include access for the widest range of user groups.

This Policy contributes towards achieving Objectives 6 and 8 of this Local Plan.

Policy HP 5

OPEN SPACE, SPORTS AND RECREATION FACILITIES

The Council will work with partners and sports providers across the district to maintain, expand and improve the quality and accessibility of public open space, sports and recreational facilities of different types and will aim to achieve and exceed standards set out in the Council's 2017 Open Spaces Strategy or any future update.

In line with policy HP3, new development must be designed to include, protect and enhance the green infrastructure network and the Council will prepare and adopt a new Supplementary Planning Document (SPD) which will update and replace previous guidance on how this will be achieved and how the following requirements will be implemented.

All new residential developments of 11 or more dwellings on sites of 1.5 hectares and above will be expected to provide a minimum 10% of the gross site area as open space laid out to meet the Council's specifications having regard to the Council's Open Spaces Strategy and the requirements of any SPD. No single area of useable open space will be less than 0.15 hectares in size. Financial contributions will also be sought through s106 legal agreements (or an appropriate alternative mechanism) towards ongoing maintenance.

If new development would be better served by existing or proposed open spaces within an accessible distance (having regard to the standards set out in the Open Spaces Strategy or any future update), a financial contribution in lieu of on-site provision may be sought through a s106 legal agreement or an appropriate alternative mechanism towards any necessary improvement or expansion of existing, or the delivery of new, open spaces and/or sports facilities.

Where residential developments have the potential to give rise to adverse impacts on internationally important habitat sites (Ramsar, SPA and SAC) through increased recreational disturbance, the Council may require, as part of any mitigation programme, the provision of larger areas of high quality natural and semi-natural open space to absorb day-to-day recreational activities such as routine dog walking to reduce the frequency of visits made to nearby designated sites. In order to serve this function, such an open space must be of a suitable size and include circular walks of sufficient length for daily dog walking, dogs-off-lead areas and waste bins.

Policy LP 2

HOUSING CHOICE

The Council will work with the development industry and housing providers to deliver a mix of dwelling types, sizes and tenure within the housing growth proposed for the District which reflects the Council's overarching vision for growth in Tending District and the evidence of housing need contained in its latest Strategic Housing Market Assessment (SHMA), which will be the subject of periodic review.

On developments of 11 or more dwellings, the Council will expect to see a mix of dwelling size, type and tenure that broadly reflects the housing need identified in the latest Strategic Housing Market Assessment unless there are specific housing mix requirements for a particular site, as set out in site-specific policies in this Local Plan, or genuine physical or economic viability reasons why this mix cannot be achieved. The Council will also require a proportion of the new properties to be provided in the form of affordable housing in line with the requirements in Policy LP5.

The Council will support the development of bungalows, retirement complexes, extra care housing, independent living, starter homes, self-build and other forms of residential accommodation aimed at meeting the future needs of older and disabled residents as well as family housing. Support will also be given to innovative development proposals subject to consideration of other Local Plan policies.

This Policy contributes towards achieving Objectives 1 and 6 of this Local Plan.

Policy LP 3

HOUSING DENSITY AND STANDARDS

New residential and mixed-use development (including conversions and changes of use) must achieve an appropriate housing density that has regard to the following factors:

- a. accessibility to local services;
- b. the need for residential development to comply with the government's latest 'Technical housing standards - nationally described space standard';
- c. the required mix of housing;
- d. the context and character of development (and the opportunity to enhance that character) in the immediate area;
- e. for the edge of greenfield sites, the need for an appropriate transition between built development and the open countryside; and
- f. on-site infrastructure requirements that will need to be incorporated into the layout of the development (including green infrastructure, highways and footpaths built to adoptable standards, public rights of way and any community facilities).

On housing developments of 10 or more dwellings, 10% of market housing should be to Building Regulations Part M4(2) 'adaptable and accessible' standard. For affordable homes, 10% should be to Building Regulations Part M4(2) and 5% should be to Part M4(3) 'wheelchair-user' standards (Ref. Tending District Housing Viability Assessment 12 May 2017).

This Policy contributes towards achieving Objectives 1 and 6 of this Local Plan.

Policy LP 5

AFFORDABLE HOUSING

To promote a mix of housing tenure in the District and address the housing needs of people and families with lower incomes who cannot afford to buy or rent housing on the open market, the Council will work with the development industry to provide new affordable housing.

For development proposals outside of the Tending Colchester Borders Garden Community, involving the creation of 11 or more (net) homes, the Council will expect 30% of new dwellings, (including conversions) to be made available to Tending District Council (subject to viability testing) or its nominated partner(s) to acquire at a proportionate discounted value for use as affordable housing.

To avoid an over-concentration of affordable housing in one location, no single group of affordable housing will exceed ten dwellings and to ensure positive integration between the residents of affordable housing and market housing, there should be no material difference in the appearance or quality between dwellings to be sold on the open market and those to be acquired and managed by the Council or its nominated partner(s).

The size and type of affordable housing will be specified by the Council on a case-by-case basis having regard to the latest Strategic Housing Market Assessment (SHMA) and housing needs register and will be the subject of negotiation between the Council and the developer or applicant.

This Policy contributes towards achieving Objective 1 of this Local Plan.

Policy LP 4

HOUSING LAYOUT

To ensure a positive contribution towards the District's 'sense of place', the design and layout of new residential and mixed-use developments in the Tending District will be expected to:

- a. promote health and wellbeing by incorporating and maximising the use of green infrastructure, verges, trees and other vegetation. Proposals for residential development on sites of 1.5 hectares and above are required to provide at least 10% of the gross site area as public, open space (unless there are more specific open space requirements set out in policies relating to the site in question);
- b. locate new public open space where it can be conveniently and safely accessed by all members of the community, especially children by walking and cycling; and ensuring it is directly overlooked on all sides and not located to the rear of properties;
- c. consider surface water management from the outset of site layout and masterplanning. All surface water should be managed by means of Sustainable Urban Drainage System (Suds) unless there is an exceptional case not to do so;
- d. minimise the opportunities for crime and anti-social behaviour by ensuring good natural surveillance of both public and private spaces from buildings and the streets, providing clear definition between public and private spaces and convenient access for emergency services
- e. ensure that the overall highway network is legible, permeable, with all roads connected wherever possible and fit for purpose by all road users;
- f. ensure internal road layouts can safely and comfortably accommodate emergency services, waste collection services, buses (where necessary) and other large vehicles;
- g. accommodate residential parking provision for residents on-plot, either at the front or side of dwellings with sufficient provision of on-street parking for use by visitors and delivery vehicles;
- h. deliver new dwellings that are designed to high standards of architecture, which respect local character and which together with a well-considered site layout, create a unique sense of place;
- i. be of a density that reflects the factors set out in Policy LP3;
- j. provide for private amenity space of a size and configuration that meets the needs and expectations of residents and which is commensurate to the size of dwelling and the character of the area; and
- k. meet all other requirements of the Local Plan.

To ensure new developments meet these requirements and other requirements of policies in this Local Plan, the Council will sometimes work with landowners, developers and other partners, particularly on larger schemes, to prepare master plans or development briefs prior to the submission of planning applications.

In determining planning applications, the Council will also refer to the guidance provided in the Essex Design Guide for Residential & Mixed-Use Developments, 'Building for Life' and the 'Manual for Streets' and as superseded; as well as adopted Master Plans, Place Plans, Neighbourhood Plans or Village Design Statements. For new residential development in Jaywick Sands, the Council will also have regard to the Supplementary Planning Document (SPD) being prepared to guide new development in that area.

This Policy contributes towards achieving Objectives 1, 5 and 6 of this Local Plan.



STANFORDS
ESTABLISHED 1879

SPL1 – Managing Growth

Policy SPL1 defines Great Holland as Smaller Rural Settlement; smaller villages within Tendring District's rural heartland have much less in the way of job opportunities, local services, facilities and other infrastructure. Residents of these smaller villages are often reliant on neighbouring towns and villages for work, shopping and other services and frequently need to travel distances either by public transport (if it is available) or, more often than not, by private car. Because of this, these smaller villages are considered to be the least sustainable locations for growth and there is a concern that encouraging too much development in these areas will only serve to increase the number of people having to rely on cars to go about their everyday lives. However, the site is such a significant distance from the Settlement Boundary of Great Holland (just short of 3km) it actually adjoins the Strategic Urban Settlement of Clacton to the southeast and southwest boundaries. This would mean that the site performs well in terms of its sustainability credentials.

SPL2 – Settlement Development Boundaries

To encourage sustainable patterns of growth and carefully control urban sprawl, each settlement listed in Policy SPL1 (with the exception of the Tendring Colchester Borders Garden Community) is defined within a 'Settlement Development Boundary' as shown on the relevant Policies Map and Local Map. Within the Settlement Development Boundaries, there will be a general presumption in favour of new development subject to detailed consideration against other relevant Local Plan policies and any approved Neighbourhood Plans. Outside of Settlement Development Boundaries, the Council will consider any planning application in relation to the pattern and scales of growth promoted through the Settlement Hierarchy in Policy SPL1 and any other relevant policies in this plan.

SPL3 – Sustainable Design

Over recent years, local and national policy and guidance has placed more weight than ever on the sustainability of developments. Both the NPPF and the Local Plan set out how developments must be sustainable.

This section provides commentary on how a development can meet Policy SPL 3, the policy that provides the assessment criteria for the sustainable design of a development for the District and Sections 2 and 14 of the National Planning Policy Framework.

The first part of SPL3 states that development must maintain and respect local character, relate well to local surroundings, existing landscape features but also enhance the landscape through provision of new planting. Design elements that meet this section of the Policy will also meet paragraph 8 of the NPPF as they set out similar criteria for development.

The second part of SPL 3 aligns more with Section 14 of the NPPF, seeking to mitigate against traffic impacts, considering the impact of climate change and meeting the latest building regulations.

A residential development proposal for this site will likely require a Transport Assessment to assess the traffic impact of additional dwellings on Sladbury's Lane, in particularly the roundabout and access onto the road.

As set out in the policy and NPPF and the change in building regulations, developments now must include sustainable features such as EV charging points, local sourced materials, heat efficient materials and using renewable energy sources such as PV panels or air source heat pumps.

LP2 – Housing Choice

This policy states that on developments of 11 or more dwellings, there needs to be a mix of dwelling size, type and tenure that broadly reflect the housing need identified in the last Strategic Housing Market Assessment. Section 6.0 of this documents sets out the identified need in further detail.

LP3 – Housing Density and Standards

New dwellings must, under this policy, meet the nationally described space standards as set out in the Technical Housing Standards. 10% of market houses should also be built to Part M4(2) “adaptable and accessible” standard and for affordable housing, 10% should meet Part 4(2) and a further 5% should meet M4(3) “wheelchair-user” standard.

LP4 – Housing Layout

This policy sets out how the district's aims to ensure residential schemes create a sense of place. One such way is the requirement that on sites larger than 1.5ha that 10% of the area must be designated as public open space that can be conveniently and safely accessed by all members of the community.

This policy also states that residential parking should be on-plot, whether that is at the front or side of dwellings.

The Essex Design Guide is also referenced in this Policy as how to successfully create a sense of place in new development.

LP5 – Affordable and Council Housing

This policy states that for developments that create 11 or more dwellings then 30% will be expected, as a minimum, to be affordable housing.

Clusters of affordable housing shall be in groups of no more than 10 units and there will be no distinction between affordable and market dwelling houses.

HP5 - Open Space, Sports & Recreation Facilities

This policy states that all residential development of 11 or more units will need to provide a minimum of 10% usable public open space with no area of usable open space being less than 0.15ha in size.

PPL1 – Development and Flood Risk

Any new development will need to consider potential impact from surface water flooding, impact from flood risk and offsite impacts from water run-off. Section 8.0 goes into further detail on what would be required for this site.

PPL4 – Biodiversity and Geodiversity

This policy sets out that new development proposals must be accompanied with an appropriate ecological assessment to inform the Council of any potential impact to ecology.

Also set out in this policy is the requirement for any development that could impact a protected site to provide mitigation. Typically in this region this is resolved through a payment known as RAMS.

PPL6 – Strategic Green Gaps

Strategic Green Gaps cover specific locations between settlements; they are valued for the role they play in preventing the coalescence of settlements and retaining the distinct identity of settlements. The areas identified have the following characteristics:-

- The open and undeveloped character of the land
- They form a visual break between settlements;
- Their boundaries follow physical features on the ground floor; and/or
- Only land required to secure the objectives of the Strategic Green Gaps has been included

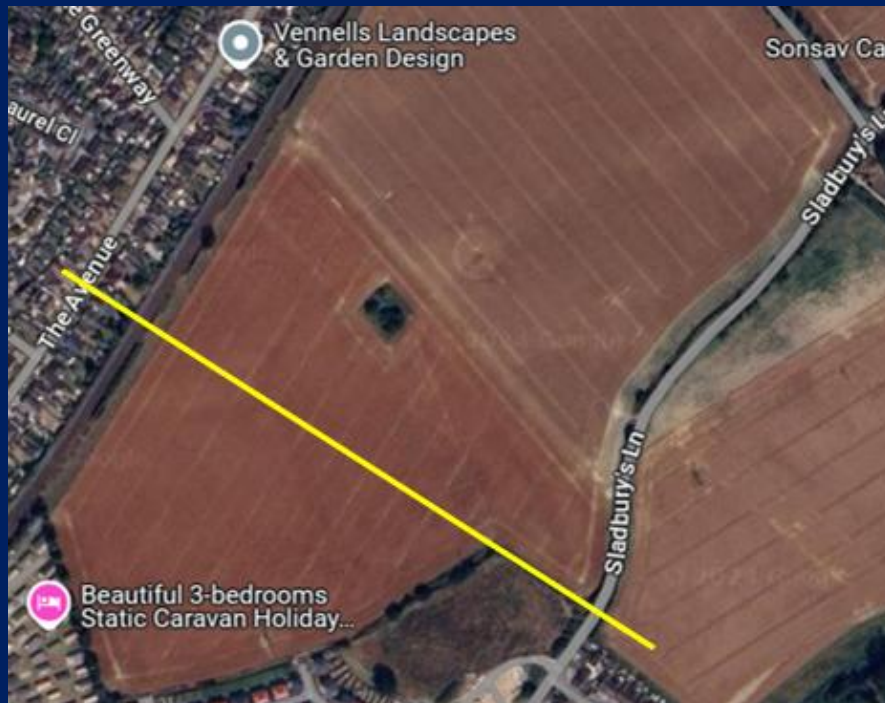
In this location maintaining the gap between the railway line and Picker's Ditch is deemed important to maintain clear separation and distinction between the identity and character of Holland-on Sea and the Burrsville area of Greater Clacton. It is noted that a Landscape and Visual Impact Assessment (LVIA) was submitted during the determination process of the adjacent site, the purpose of which was to assess whether or not the site might be developed without significant detriment to the character or visual amenity of the surrounding area, or to the function of the Strategic Green Gap between Burrsville Park/Great Clacton and Holland-on-Sea.

A summary of the Planning Inspector's view, of the adjacent development site, on the effect of the proposed development and the changes to the landscape character are that these changes "would be limited" and "would be largely confined to the appeal site itself and its immediate environs". In reaching these views the Inspector commented that "the character of which is already influenced by non-agricultural land uses including the neighbouring residential development and the Valley Farm Holiday Park, a line of pylons and the railway line". This same thought process can be applied to this current application, with the new housing development immediately to the west and existing development to the south and east and well maintained hedgerows to the north.

The Planning Inspector touches briefly on an argument referred to as coalescence where a comparison is made between the size of the proposed development site expressed as a percentage of the wider area of the LGG. The figures for the development approved under 15/01351/OUT were that the developed area of the appeal site (3.6 ha) would have represented about 2.71% of the total area of the LGG. By way of a comparison; this current application's site would represent around 1.19% of the total area of the LGG.

It will be prudent to note in the planning statement that the Inspector refers to "larger-scale tracts of arable land eastwards of the appeal site that serve the purpose of maintaining the separation of Burrsville Park and Holland-on-Sea and which display the least urban edge influences". The current application site is not part of the larger scale arable land but rather a small well contained parcel that is currently being used as a compound.

The yellow line plotted along the northeast boundary, below, provides an idea where the boundary between the narrower and wider aspects of the LGG exists. We would argue that, whilst the site IS arable land eastwards of the appeal site it is still part of the 'narrower' aspect of the LGG it still does not play a key role in the physical separation of the settlements of Burrsville Park and Holland-on-Sea or on the protection of their rural setting. And, as the Inspector noted regarding the appeal site "the site could be developed in the manner proposed without comprising the open character of the wider portion of the Green Gap that does fulfil the separation functions".



The Policy on SGG states that any development permitted must be consistent with other policies in the plan and must not lead to the coalescence of settlements, see extract below. It can safely be argued that this proposal would be consistent with policy and would not lead to the coalescence of settlements.

On planning balance, given that this Site does not contribute to the SGG and would not lead to coalescence if developed, the loss of this part of the green gap would be greatly outweighed by the benefits of new residential units in this sustainable location.

Policy PPL 6

STRATEGIC GREEN GAPS

The Strategic Green Gaps as shown on the Policies Maps and Local Maps will be protected in order to retain the separate identity and prevent coalescence of settlements. Any development permitted must be consistent with other policies in the plan and must not (individually or cumulatively) lead to the coalescence of settlements.

This Policy contributes towards achieving Objectives 7 and 8 of this Local Plan.

3.3 National Planning Policy Framework

The National Planning Policy Framework (NPPF) 2024 outlines the UK government's strategic approach to addressing the nation's housing shortage and emphasizes the importance of well-designed, sustainable housing developments. Central to this framework is the ambitious goal of delivering 1.5 million new homes within the current parliamentary term, a response to the acute housing crisis marked by a backlog of 4.3 million homes.

To meet the housing demand, the NPPF 2024 introduces mandatory housing targets for all councils in England. These targets are designed to boost housebuilding in areas with the most significant need, facilitating homeownership and removing barriers to economic growth. The framework emphasizes the need for local planning authorities to maintain up-to-date plans that identify specific housing requirements and allocate appropriate land for development.

Quality design is a cornerstone of the NPPF 2024, with a focus on creating sustainable, healthy, and inclusive communities. The framework references national design guidance, including the "Building for a Healthy Life" standards and the "National Design Guide," which provide principles for well-designed places.

Sustainability is integral to the design policies outlined in the NPPF. Developments are expected to incorporate green infrastructure and utilize energy-efficient building practices. The framework encourages the use of renewable energy sources and the implementation of measures to mitigate and adapt to climate change, such as sustainable drainage systems.

In addition to environmental sustainability, the NPPF highlights the importance of social sustainability. This includes designing developments that promote health and well-being, provide accessible public spaces, and encourage active lifestyles. The framework advocates developments that reduce the need for extensive travel and places importance on promoting and delivering new homes in sustainable locations.

3.4 National Model Design Code

The National Model Design Code sets out 10 Characteristics of a Well-Designed Place;

Context

Proposals will ensure that all opportunities, constraints and local contexts are considered throughout the design process..

Identity

The identity will be a continuation of traditional tyle that is reflective of this part of Holland-on-Sea

Built Form

Built form has been carefully designed to ensure buildings, streets and spaces work cohesively together to create an attractive scheme with frontages overlooking public open space.

Movement

The parcels have been designed to utilise the footpath connections approved within the adjacent application. This includes connection from turning heads within parcels.

Nature

The natural environment has been included in the design through dwellings being positioned overlooking retained hedgerows and habitats.

Public Spaces

High quality public open spaces will be provided within the Site, giving consideration to existing landscape features and the drainage solution.

Use

A sustainable mix of housing and uses has been considered for the development.

Homes and Buildings

High quality homes will be delivered alongside amenity space to create a sustainable development that supports the lifestyles of residents, enables adaptation and promotes health and wellbeing.

Resources

Sustainability will sit at the heart of the design.

Lifespan

This will be the entrance to Holland-on-Sea, integrating well with the existing community and the new community of Persona Homes development.



4.0 Evolution of Design & Layout



Land at Sladbury's Lane

4.1 Opportunities and Constraints



4.2 Initial Sketch

The initial sketch is a product of various initial sketches that all have sought to give consideration to the context of the site and the identified opportunities and constraints.

The basin was originally proposed to be adjacent to the roundabout, offering views over the basin into the scheme.

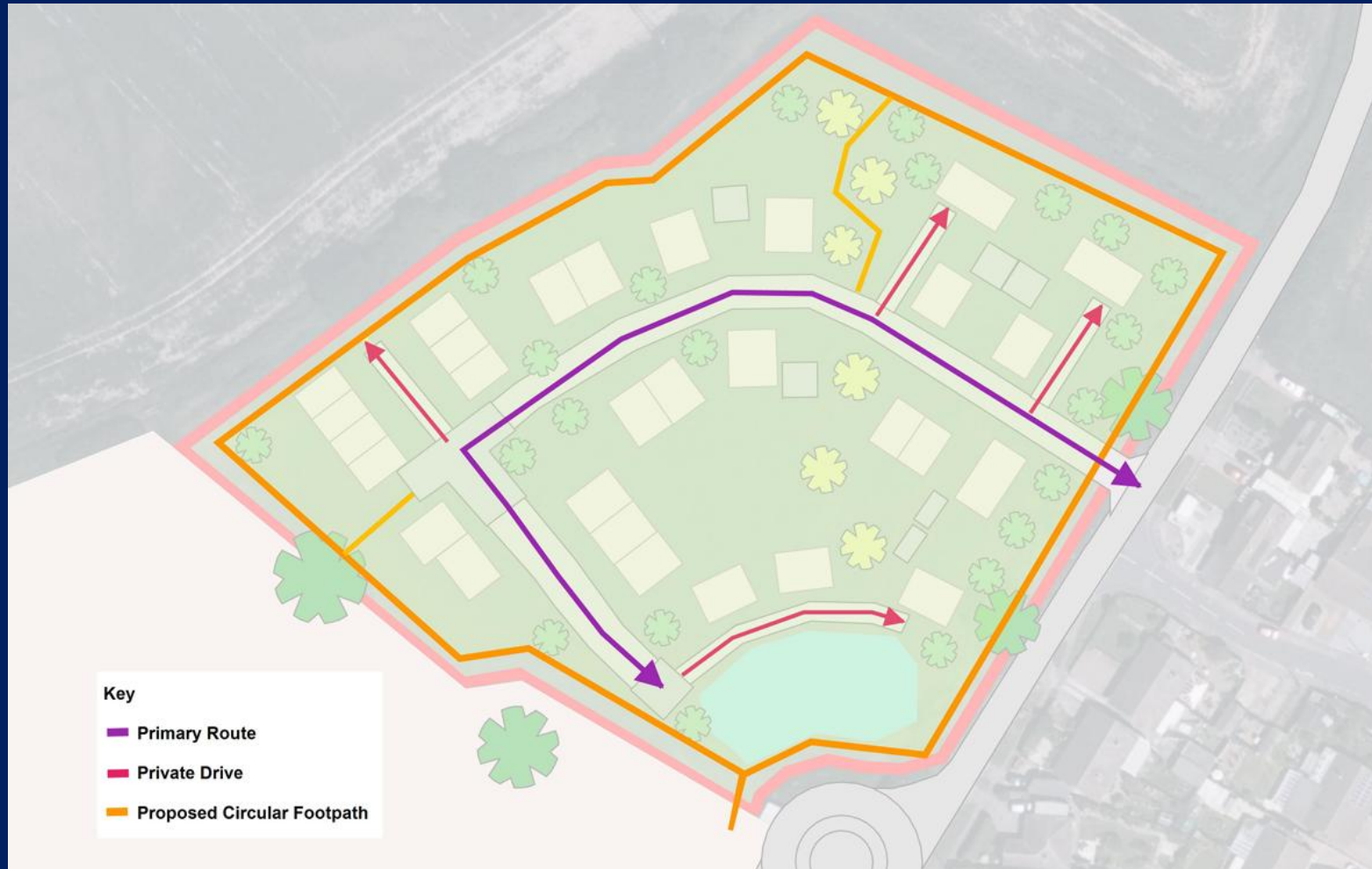
The view into the site from Sladbury's Lane, looking northwards on the other side of the roundabout, was originally addressed by the design keeping the main line of sight clear of built form and instead proposing new trees.

A circular walking route was sought early in the design stage; the idea would be that it would be possible to walk around the site to allow for wellbeing opportunities for future residents and for the public to enjoy views, on foot, of the strategic green gap. To enable natural surveillance of this walking route, some dwellings have been proposed to be dual aspect and an apartment block is proposed on the edge of the walking route.



4.3 Initial Access and Movement

The main access of the proposed residential development originally proposed to utilise the existing access into the site that was established when the site was permitted to be used as the construction compound for the Persona Homes Development with one primary route through the site with private drives directly off the main route. These private Drives will serve a limited around of dwellings, up to 8. A circular footpath is proposed around the perimeter of the site with some direct links from the main access; the Circular walking route will enable this public amenity space adjacent to the “Green Gap”



4.4 Changes to basin and access location

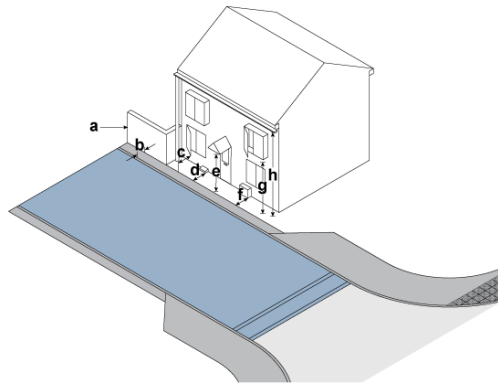
The initial sketch designs evolved as the constraints of the site evolved as further information was obtained by consultant reports and surveys. The Highways Assessment revealed that the existing access would not be the optimal access for the site and could pose traffic conflicts that would not be acceptable with Essex County Council Highways. The original plan for having a landscaped basin at the front of the site became unpractical as it was realized that this part of the site is not the lowest point and would require an unviable amount of land take and pumping of water to enable it to be utilized. These two key changes altered the initial sketches to be closer to the illustrative layout that is proposed as part of this application.

Basin Requirements

Detention basin in the north-east corner of the site, the lowest point, that has an area of 392m².

Access Requirements

As per the Essex County Council Technical Design Manual, a Type E access would be required with a 5.5m wide access with a formal bellmouth (6m radii min) with at least one side with a 2.5m footway. The visibility splay required for 30mph highways is 43m.



Type E Access Road

- a. Garden Wall adjacent to No Build Zone
- b. 500mm No Build Zone set back from kerb face
- c. Window opening not encroaching into No Build Zone
- d. Gas Meter Box located outside No build Zone
- e. Porch Overhang not encroaching into No Build Zone
- f. Alternative Gas Meter Box located outside No Build Zone
- g. Building Overhangs located outside No Build Zone
- h. Eaves and Guttering located outside of No Build Zone

Extract from ECC Technical Design Manual

5.0 The Proposal



Land at Sladbury's Lane

5.1 Illustrative Site Plan



The planning policy, the opportunities and constraints that fed into the formation of the initial sketches have then been worked through to an illustrative site plan to demonstrate what could be achievable on site.

This illustrative site layout provides evidence of how up to 30 dwellings along with associated infrastructure could be achieved on site whilst seeking policy compliance.

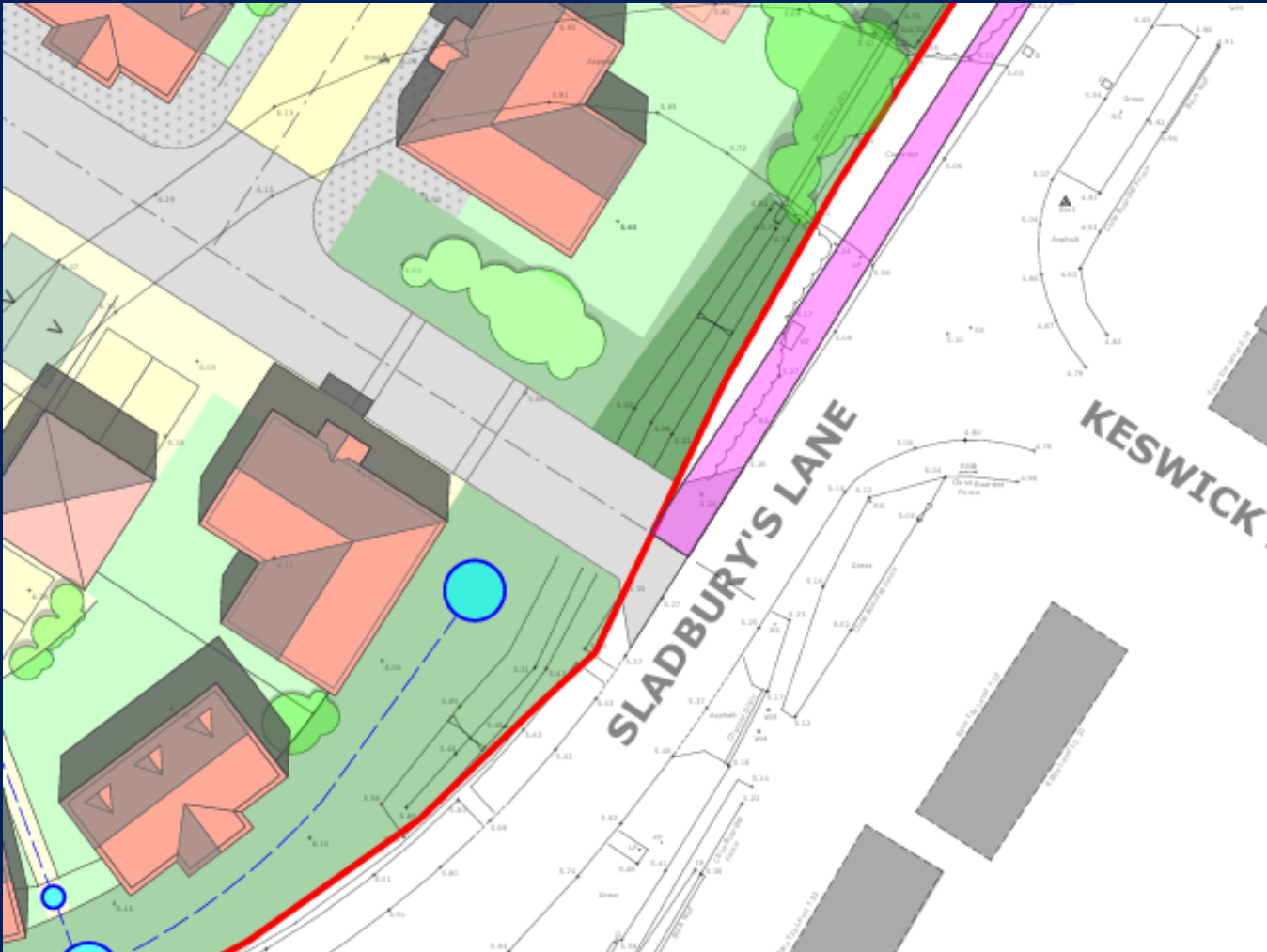
Following this illustrative site layout, the parameter plan for storey heights can be set for any future reserved matters application.

5.2 Parameter Plan – Storey height



The surrounding homes, vegetation and land form have shaped the storey heights parameter plan. This has been set as “up to” to allow for some flexibility at the detailed stage of a future Reserved Matters application.

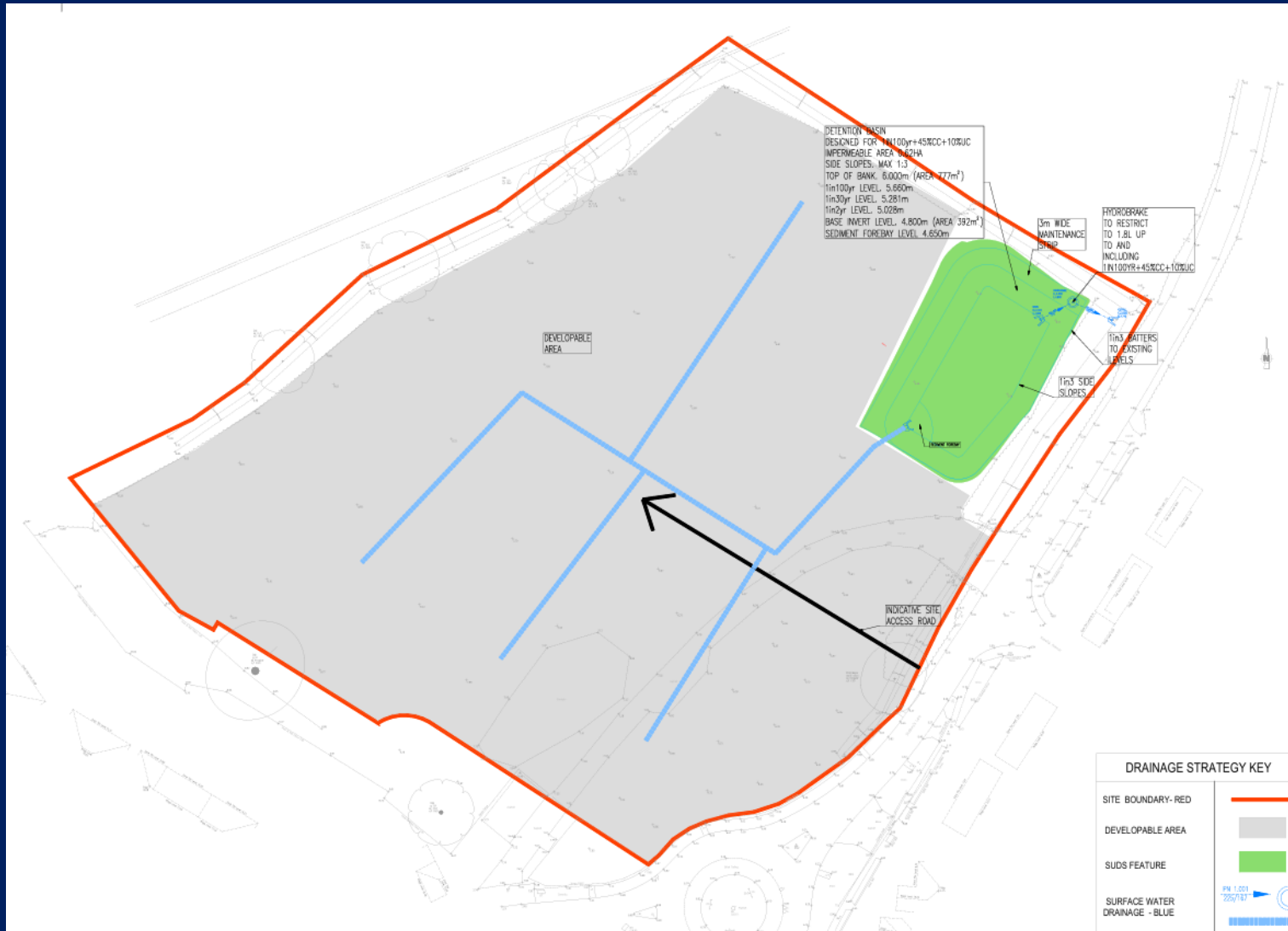
5.3 Access



The Illustrative Masterplan includes sufficient space at the proposed altered access location to accommodate a Type E access. The plan also demonstrates that a suitable visibility splay can be achieved as this proposed access.

As per the Essex County Council Technical Design Manual, a Type E access would be required with a 5.5m wide access with a formal bellmouth (6m radii min) with at least one side with a 2.5m footway. The visibility splay required for 30mph highways is 43m.

5.4 Drainage Strategy



The application includes a Drainage Strategy produced for up to 30 unites by Ingent.

This strategy demonstrates that the proposed system can accommodate surface water run-off from all events up to and including the extreme 1 in 100-year event plus a 45% allowance for climate change.

5.5 Landscaping

The landscape principles for the proposal are set around protecting and enhancing the existing hedgerows and trees and ensuring that additional planting is introduced that is native and will benefit pollinating animals and insects.

The hard landscaping details will revolve around ensuring there is a clear distinguishable difference between the public and private and between the main access road and the private drives.



6.0 Summary



Land at Sladbury's Lane

6.0 Summary

This Statement has provided a clear rationale for the design process, which has included a comprehensive analysis of the site's context and the assessment of relevant policies, that has helped shape a clear set of principles to guide the design of this site. The development proposed on the land at Sladbury's Lane will provide a unique opportunity to create a well considered, outward looking, traditional scheme that will provide an enhancement to the setting of the edge of Holland-on-Sea.

The development will offer the following main benefits;

- Build an integrated community that sensitively responds to existing neighbours and the wider landscape context.
- Provide new opportunities to appreciate the green gap views with a walking opportunity around the perimeter of the site.
- Bring wide range of new sustainable homes to Holland-on-Sea.

